

		unresolved dispute regarding the authenticity of an opt-out request. The scope of the releases in Paragraphs 6.2 and 6.3 of the settlement agreement are overbroad. The phrase “and ascertained in the course of the Action” must be removed from both releases. Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. The class notice pages must be numbered. In Section 3 of the class notice, the phrase “Court Approved Deductions from Gross Settlement.” should be amended to state “Deductions from Gross Settlement Subject to Court Approval.” Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiffs’ attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs’ declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
10	30-2025-01497724 Yorba Canyon, LLC vs. City of Yorba Linda	Petitioner and Plaintiff Yorba Canyon, LLC’s (“Petitioner”) Motion for Leave to File First Amended Verified Petition to Writ of Mandate, Prohibition, or Other Extraordinary Relief; Complaint for Declaratory Relief (“1AP”) is GRANTED. The proposed 1AP is not deemed filed. IT IS ORDERED THAT Petitioner shall file and serve the proposed 1AP within five (5) days of this ruling. The court GRANTS Petitioner’s request for judicial notice of the original petition in this action. (Cal. Evid. Code § 542(d).)

	The court GRANTS Respondents City of Yorba Linda, City of Yorba Linda Community Development Department, Nate Farnsworth and City of Yorba Linda’s Planning Division’s (collectively, “Respondents”) requests for judicial notice of the following: (1) City of Yorba Linda City Council Resolution No. 2024-5898. (2) California Department of Housing and Community Development correspondence dated July 24, 2024. (3) Correspondence from City of Yorba Linda Community Development Director Nate Farnsworth dated April 28, 2025. (4) Yorba Linda Municipal Code, Sections 18.36.100 <i>et seq.</i> - Design Review. (5) Yorba Linda Municipal Code, Sections 18.36.200 <i>et seq.</i> - Conditional Use Permit. (6) Yorba Linda Municipal Code, Sections 18.36.800 – Final Decisions and Appeals. (7) Uniform Application for Conditional Use Permit and Design Review with Attachment 1 – Project Description. (8) City of Yorba Linda City Council Resolution 2024-5924. (9) Formal Application Resubmittal dated January 30, 2025. The court may take judicial notice of “resolutions, reports and other official acts of County and City[.]” (<i>Long Beach Equities, Inc. v. Cnty. of Ventura</i> (1991) 231 Cal. App. 3d 1016, 1024.) The court may also take judicial notice of municipal codes and licensing applications. (<i>City of Corona v. Naulls</i> (2008) 166 Cal. App. 4th 418, 420 n.1.) The court may take judicial notice of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” (Cal. Evid. Code § 452(c).) <u>Motion for Leave to File Amended Petition</u> Petitioner seeks to amend its petition to include new allegations based on Respondent City of Yorba Linda’s (the “City”) decision under Assembly Bill 1633 determining that there was not substantial evidence to support a CEQA exemption under CEQA Guidelines Section 15183 for Petitioner’s project, which Petitioner contends is entitled to the Builder’s Remedy protections under the Housing Accountability Act (“HAA”).
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		The 1AP seeks to add a third cause of action for “Writ of Mandate — CCP § 1094.5 and/or § 1085; Violation of Housing Accountability Act (HAA)” and a fourth cause of action for “Writ of Mandate — CCP § 1094.5 and/or § 1085; Violation of Housing Accountability Act (HAA).” The third cause of action asserts that the City’s decision was an unlawful disapproval of Petitioner’s project under the HAA. The fourth cause of action claims that due to new case law—<i>New Commune DTLA LLC v. City of Redondo Beach</i> (2025) 115 Cal.App.5th 111 (“<i>New Commune</i>”) which was decided in October 2025—the overlay in the City’s 2024 Housing Element (“Housing Element”) is no longer substantially compliant with the HAA. Thus, Petitioner alleges that its project qualifies as a builder’s remedy project entitled to special protections under the HAA. The fourth cause of action alleges that the City acted in bad faith by improperly requiring a level of environmental analysis wholly out of proportion to the environmental analysis it has required for other, non-Builder's Remedy projects. The 1AP also adds to the prayer for relief: (1) “writ of mandate or other appropriate relief, including an injunction, declaration, and/or order, commanding Respondents to comply with the Housing Accountability Act with respect to the proposed Project, including, but not limited to, an order that the Project is eligible for the Builder's Remedy, and directing Respondents to conduct the Project's CEQA review in a manner substantially similar to other projects that were analyzed in the 2022 EIR and 2024 Addendum;” and (2) “writ of mandate or other appropriate relief, including an injunction, declaration, and/or order under Code of Civil Procedure sections 1094.5 and/or 1085 commanding that Respondents analyze the Project under the 2022 EIR and for the Court to retain continuing jurisdiction over this matter to ensure compliance with this Court's decision and applicable law.” Respondents oppose this Motion only as to Paragraphs 34, 35, 36, 57, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, and Paragraph 6 of the Prayer. These paragraphs include the entire new Fourth Cause of Action in the 1AP, and supporting allegations concerning the <i>New Commune</i> case. Respondents argue that the Fourth Cause of Action is barred by an applicable statute of limitations and that the claim is not ripe for adjudication.
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		action attacking a general plan or mandatory element thereof on the basis that it is inadequate.” (<i>Id.</i>) • “In the case of an action or proceeding challenging the adoption or revision of a housing element pursuant to this subdivision, the action or proceeding may, in addition, be maintained if it is commenced and service is made on the legislative body within 60 days following the date that the Department of Housing and Community Development [“HCD”] reports its findings pursuant to subdivision (h) of Section 65585.” (Cal. Gov’t Code § 65009(c)(2) [emphasis added].) • “An action or proceeding challenging the adoption or revision of a housing element that the Department of Housing and Community Development has found to substantially comply with the requirements of Article 10.6 (commencing with Section 65580) of Chapter 3 shall be commenced, and the legislative body shall be served, within six months after the accrual of the cause of action as provided in this subdivision.” (Cal. Gov’t Code § 65009(d)(2)(A).) • “A cause of action brought pursuant to this subdivision shall not be maintained until 60 days have expired following notice to the city or clerk of the board of supervisors by the party bringing the cause of action, or the party’s representative, specifying the deficiencies of the general plan, specific plan, zoning ordinance, or other action described in subparagraph (B) of paragraph (1).” (Cal. Gov’t Code § 65009(d)(3)(A) [emphasis added].) “A cause of action brought pursuant to this subdivision shall accrue 60 days after notice is filed or the legislative body takes a final action in response to the notice, whichever occurs first.” (<i>Id.</i> [emphasis added].) The City adopted its Housing Element on June 18, 2024. (Respondents’ RJN, Ex. 1.) The HCD determined that the City’s Housing Element was substantially compliant with the law on July 24, 2024. (Respondents’ RJN, Ex. 2.) This action was filed July 17, 2025. To the extent a cause of action challenges the adoption of the Housing Element, the relevant statute of limitations is six months after the accrual of the cause of action (Cal. Gov’t Code § 65009(d)(2)(A)) since the HCD determined that the Housing Element was substantially compliant. The statute of
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		limitations for a claim challenging the adoption of the Housing Element therefore ran six months after the housing element was adopted, i.e. December 18, 2024 (subject to any tolling). However, Petitioner demonstrates in its reply that this statute of limitations does not apply to its fourth cause of action, since Petitioner is not making a facial attack on the Housing Element, is not challenging its adoption, and is not asking that it be set aside or invalidated. Rather, Petitioner is only arguing that the Housing Element is no longer substantially compliant with the HAA as a prerequisite for a Builder’s Remedy claim under the HAA. One of the criteria for a project to be defined as a “builder's remedy project” is that “[o]n or after the date an application for the housing development project or emergency shelter was deemed complete, the jurisdiction did not have a housing element that was in substantial compliance with this article.” (Cal. Gov't Code § 65589.5(h)(11)(B).) Petitioner argues that this language shows that it need not allege or prove that a housing element was invalid at the time of adoption, but simply that the housing element is out of compliance “on or after the date an application for the housing development project . . . was deemed complete.” The court agrees with Petitioner that the allegations in the 1AP do not challenge the City’s adoption of the Housing Element, but rather focuses on the requirements for the Builder’s Remedy protections under the HAA. Petitioner does not seek to “attack, review, set aside, void, or annul the decision of a legislative body to adopt or amend a general or specific plan.” (Cal. Gov't Code § 65009(a)(2).) Thus, the policy reasoning for the short statutes of limitations to avoid barriers to “the completion of needed developments even though the projects have received required governmental approvals” does not apply here. (<i>Id.</i>) Accordingly, the statute of limitations under Section 65009 does not apply to the fourth cause of action. In addition, as Petitioner points out, Petitioner could not have brought this claim at the time the Housing Element was adopted. It was not until the <i>New Commune</i> decision in October 2025 that Petitioner had grounds for the fourth cause of action. The <i>New Commune</i> case concerned the minimum density requirements under Government Code § 65583.2(h), clarifying that without exception, “overlays are unlawful when they allow development below the statutory minimum density.”
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		(<i>New Commune DTLA LLC v. City of Redondo Beach</i> (2025) 115 Cal. App. 5th 111, 135.) The court found that the relevant laws evidenced “the Legislature’s intent to prevent local jurisdictions from including in their housing element sites that have little to no probability of being used to meet identified housing needs.” (<i>Id.</i> at 134.) The court found that the City of Redondo Beach’s overlay did not comply with the mandatory minimum density requirements. (<i>Id.</i>) The overlay at issue was as follows: “The housing element at issue accommodates 1,223 lower-income residential units through a residential overlay applied to sites zoned for commercial and industrial use. The overlay allows for a density of 55 dwelling units per acre. The overlay does not eliminate the commercial and industrial base zoning on the identified sites.” (<i>Id.</i> at 134-135.) The plaintiff argued that the City violated the HAA by “allowing the housing element to identify sites that accommodate [the Department of Housing and Community Development’s regional housing needs allocation for the City] but that, in actuality, may be developed without any residential component.” (<i>Id.</i> at 135.) The court agreed, finding that the overlay “allows development on identified sites without requiring any residential construction, i.e., it allows for construction with zero residential units.” (<i>Id.</i>) The overlay was also improper because “the City’s overlay maintains commercial and industrial zoning rights that section 65583.2(h)(2) requires be eliminated[.]” (<i>Id.</i> at 136.) In its fourth cause of action, Petitioner alleges that Respondents adopted a housing element that is similarly non-compliant because it relies on an overlay on parcels zoned for commercial or industrial use, which therefore may be developed “by right” without housing, and thus cannot meet the minimum density requirements under the HAA. An “action to enforce a statutory obligation” is subject to a three-year statute of limitations under CCP § 338. (<i>Travis v. Cnty. of Santa Cruz</i> (2004) 33 Cal. 4th 757, 773.) For “a facial challenge to a zoning ordinance based on preexisting statutes or the Constitution, plaintiffs are limited, under section 65009, subdivision (c)(1)(B), to 90 days <i>from the ordinance’s adoption</i>[.]” (<i>Id.</i> at 774 [emphasis added].) On the other hand, when a challenge to a zoning ordinance is “based on a later enacted state statute [that preempts the zoning ordinance], the limitations period (under Code Civ. Proc., § 338, subd. (a)) also runs . . . from the first time the challenge could be brought, i.e., the initial accrual of the cause of action,” or “the
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		[preempting] state statute’s effective date.” (<i>Id.</i> at 774.) The certainty “to local governments (§ 65009, subd. (a)(3)),” should not be “at the expense of a fair and reasonable opportunity to challenge an invalid ordinance when it is enforced against one’s property.” (<i>Id.</i> at 770-771.) Thus, when there is a change in the law such as the holding in <i>New Commune</i>, a party should be able to challenge a Housing Element, notwithstanding the short statute of limitations periods under section 65009. For this additional reason, the statute of limitations under Section 65009 does not apply to the fourth cause of action. <u>Ripeness</u> Respondents argue that the fourth cause of action is not ripe because Respondents have not taken any final actions as to Petitioner’s project. Respondents state that although the City determined that the proposal was not entitled to a CEQA exemption, the City specifically informed the Petitioner that, “The City will continue to process your application in accordance with State and local requirements.” (Respondents’ RJN, Ex. 3, p. 0118.) Respondents note that any decision of the Planning Commission can be appealed to the City Council. (Respondents’ RJN, Ex. 6, YLMC section 18.36.820.) Respondents cite to a case that required administrative exhaustion for the subject claim, but that claim was not one under the HAA. “Ripeness looks at whether a controversy is ‘definite and concrete.’” (<i>Casa Blanca Beach Ests. Owners’ Assn. v. Cnty. of Santa Barbara</i> (2024) 102 Cal. App. 5th 1303, 1309.) That court noted that “[a]n administrative decision is final, i.e., ripe, ‘when the agency has exhausted its jurisdiction and possesses ‘no further power to reconsider or rehear the claim.’” (<i>Id.</i>) “Until a public agency makes a final decision, the matter is not ripe for judicial review.” (<i>Id.</i>) “In the context of administrative proceedings, a controversy is not ripe for adjudication until the administrative process is completed and the agency makes a final decision that results in a direct and immediate impact on the parties.” (<i>Id.</i>) A claim under the HAA may be based on a disapproval decision, not just a final action. “A petition to enforce the provisions of [the HAA] shall be filed and served no later than 90 days from the later of (1) the effective date of a decision of the local agency imposing conditions on, disapproving, or any
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	other final action on a housing development project . . .” (Cal. Gov't Code § 65589.5(m)(1) [emphasis added].) Petitioner points out that the HAA sets forth grounds to bring suit before final decisions are made on a proposed project by requiring the following: • A local agency shall not adopt or impose any requirement, process, practice, or procedure or undertake any course of conduct, including, but not limited to, increased fees or inclusionary housing requirements, that applies to a project solely or partially on the basis that the project is a builder's remedy project. (Cal. Gov't Code § 65589.5(f)(6)(E).) • “Disapprove the housing development project” includes any instance in which a local agency does any of the following: ○ Makes a written determination that a preliminary application described in subdivision (a) of Section 65941.1 has expired or that the applicant has otherwise lost its vested rights under the preliminary application for any reason other than those described in subdivisions(d)1 and (e) of Section 65941.1. (Cal. Gov't Code § 65589.5(h)(6)(I).) ○ Fails to make a determination of whether the project is exempt from the California Environmental Quality Act (Division 13 (commencing with Section 21000) of the Public Resources Code), or commits an abuse of discretion, as defined in subdivision (b) of Section 65589.5.1 if all of the conditions in Section 65589.5.1 are satisfied. (Cal. Gov't Code § 65589.5(h)(6)(J).) Petitioner points out that the other claims and allegations not challenged by Respondents also concern pre-final decision actions by Respondents, and yet Respondents do not argue that those claims are not ripe. Petitioner also points out that Respondents refused Petitioner’s request for an appeal, so the City’s decision is, in essence, final. The court finds that the facts alleged in the 1AP sufficiently state that the City made a disapproval decision which renders Petitioner’s claim ripe under the HAA. <u>Prejudice</u>
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		Respondents argue that any challenge to the legal framework that provides for affordable housing in the City of Yorba Linda may sow confusion and uncertainty. However, similar prejudicial arguments were made and rejected by the <i>New Commune</i> court: “We recognize the City expended significant time and energy preparing the housing element and responding to HCD findings. We also recognize the potential practical problems inherent in rezoning. But the Legislature has established minimum density requirements and cabined the discretion of local jurisdictions to prevent them from overriding those requirements. We decline the invitation to reconsider the wisdom or practicality of this approach.” (<i>New Commune</i>, 115 Cal. App. 5th at 137.) The court finds that Respondents’ claims of prejudice are speculative and not based on permitting Petitioner leave to amend, but rather a result of the change in the law that may affect the legality of the City’s Housing Element. Based on the foregoing, the court grants Petitioner’s Motion in light of the liberal policy for allowing amendments, because there is no prejudice to Respondents, and because the claims are not barred by either an applicable statute of limitations or the ripeness doctrine. Importantly, the court recognizes that its findings and determinations in this ruling are at an early stage of the proceedings and are made on compressed briefing. <u>These findings and determinations are made without prejudice to these issues being raised again at any later stage of the proceedings.</u> Petitioner is ordered to give notice of this ruling to Respondents.
11	30-2025-01499610 Sofferman vs. Orange County Global Medical Center, Inc., a California corporation	<u>I. Motion to Compel Arbitration</u> Defendant Orange County Global Medical Center, Inc.’s motion to compel arbitration is GRANTED. Plaintiff Trevin Sofferman is ordered to arbitrate his individual claims. The case is otherwise STAYED pending completion of the arbitration. An ADR Review Hearing is scheduled for March 17, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete.